

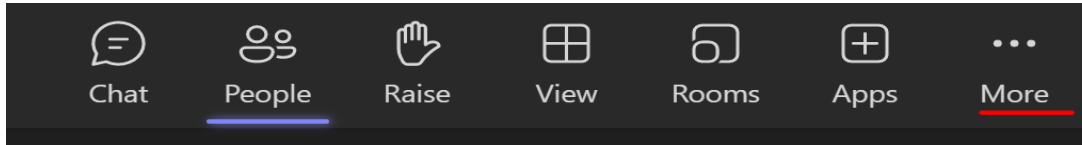
COMPLIANCE INSPECTION WORKSHOP

We will begin at 9:00 AM!

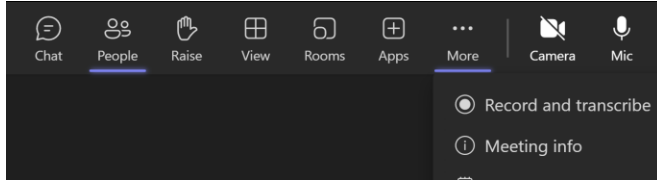


AUDIO ISSUES? TRY YOUR PHONE

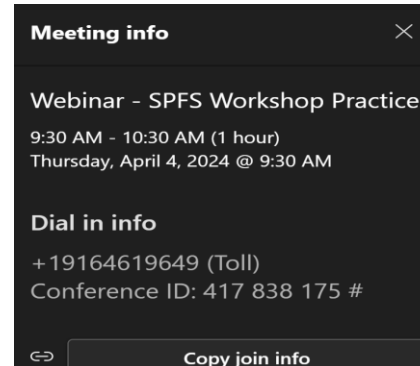
1. Click on “**More**” at the top of your screen



2. Select **Meeting info...**

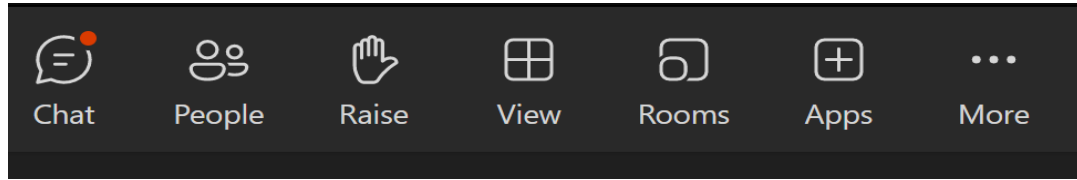


3. Follow the direction on the **Dial in info** box.

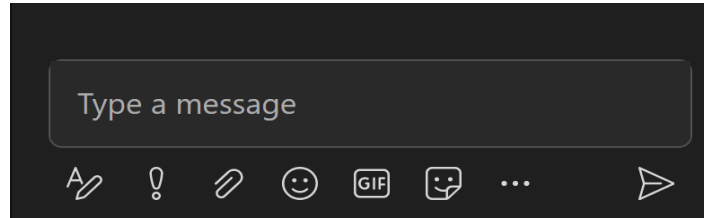


RAISING HAND / CHAT FEATURE

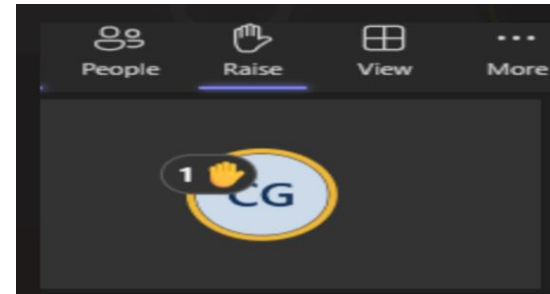
Locate the **Raise hand and/ Chat** features at the top of your screen



CHAT: To send questions through chat, Click on “Chat”, type your message, Hit Enter



RAISE HAND: To raise hand, click on “Raise”, it will appear in yellow highlight. Click on hand to lower hand



01

Workshop Presenters

02

Breaks

03

Questions

04

Attachments

05

Laws and Regulations Citations

Training Objectives

At the end of this workshop, participants will...

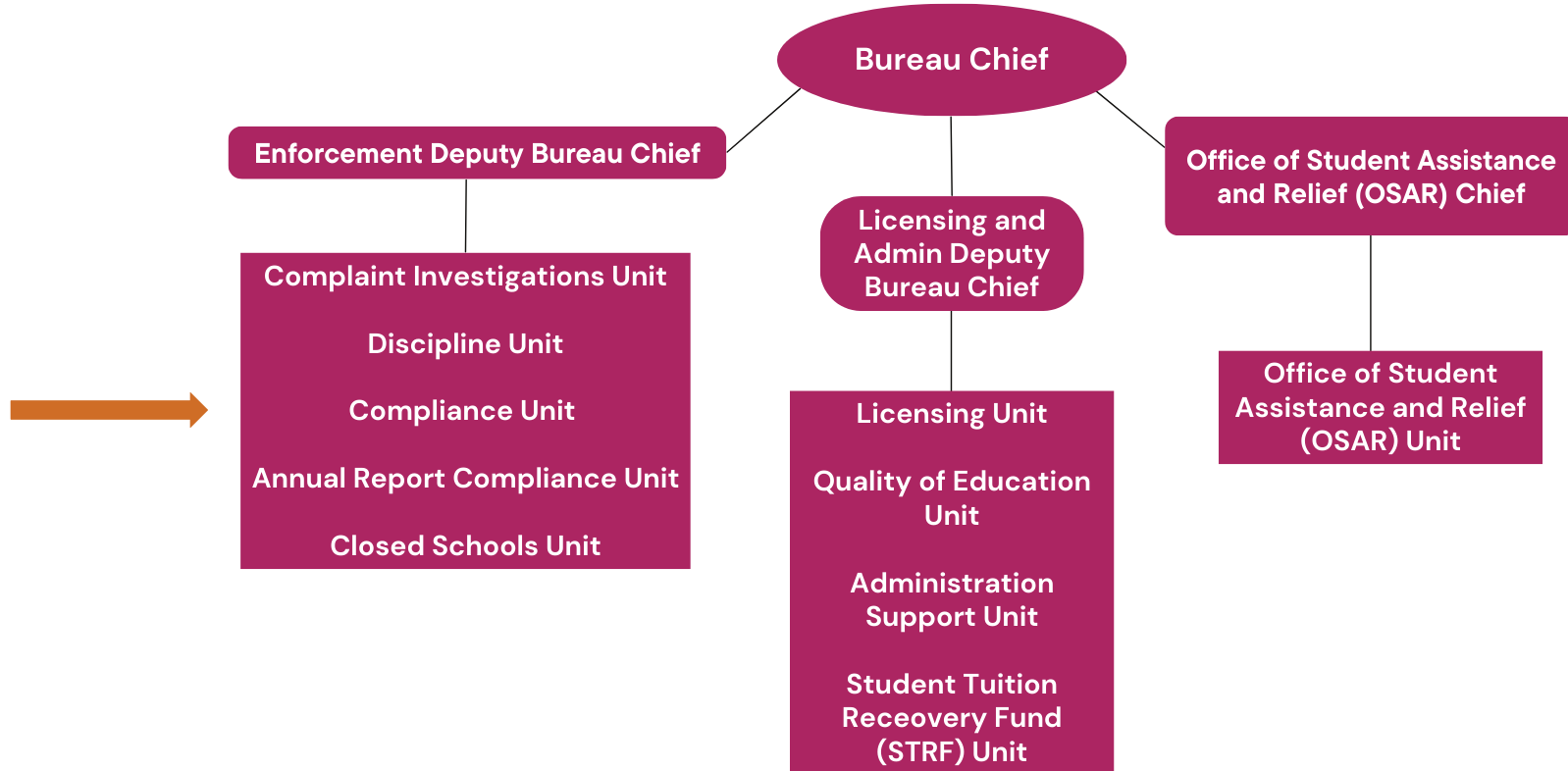




Bureau Mission Statement

“The Bureau protects students and consumers through the oversight of California’s private postsecondary educational institutions by conducting qualitative reviews of educational programs and operating standards, proactively combating unlicensed activity, impartially resolving student and consumer complaints, and conducting outreach.”

Organizational Chart



Statute vs. Regulation

- **Laws originate in the legislature**
 - California Private Postsecondary Educational Act of 2009
 - State laws can be repealed or amended
- **Regulations originate in administrative agencies and departments**
 - Title 5. California Code of Regulations, Division 7.5 Private Postsecondary Education
 - Regulations provide clarity to statutes, though are enforceable the same as statutes

Key Terms



“AND”

Means ALL elements of a series is required



“OR”

Means only ONE of the elements is required



“SHALL”

Means you MUST do something



“MAY”

Means you can do something, but it is NOT required



“WHETHER”

Gives you a choice between alternatives



“IF”

Sets a conditional requirement when the conditional element applies



“EACH”

Means every



“ALL”

Means being or representing the entire number, amount, or quantity

Minimum Operating Standards

The Bureau has adopted standards for institutions ensuring that all the following occur:

CEC § 94885



Minimum Operating Standard

**Each Program Must
Achieve Its Stated Objective**



1. Achieving Program Objectives

Curriculum and Objectives

- Institutions must ensure that the required curriculum content is provided
- Topics covered should match what students need to learn and be able to do by the end of the program
- Questions about curriculum should be referred to the Bureau's Licensing or Quality of Education Unit

Distance Education

- Programs delivered through distance education must be appropriate for online learning
- A program requiring a large percentage of hands-on competencies would not likely be a good fit for distance education instruction

5 CCR § 71710

5 CCR § 71715, § 71716

Minimum Operating Standard

**Admission Standards Must
Be Maintained for each
Program and the Standards
are Related to that
Program**

2. Admission Standards

- **Institutions shall establish specific written standards for student admissions for each educational program:**
 - These standards shall be related to the educational program
 - Institution shall NOT admit any student who is obviously unqualified or who does not appear to have a reasonable prospect of completing the program
- **Additionally, the institution must maintain admission standards that specify that:**
 - For graduate programs, students must have a bachelor's degree or equivalent
 - If the institution accepts transfer credits from other schools, the maximum number of credits allowed for transfer should be specified
 - If the institution gives credit for prior work experience, this should also be clearly stated

Minimum Operating Standard

**Facilities, Instructional
Equipment, and Materials
Must be Sufficient to
Enable Students to Achieve
Program Goals**

3. Facilities, Instructional Equipment, and Materials

- **Equipment**

- Current textbooks
- Online Text Resources
- Tool Kits
- Mannequins
- Desk/Computers
- Hardware & Software

- **Lab and Classroom**



- **Library and Other Resources**

- Reference works
- Periodicals
- Monographs
- Media
- Equipment



Minimum Operating Standard

**Withdrawal Policies Must
be Maintained and Refunds
Must be Provided**

4. Refunds

- A student who withdraws or cancels their enrollment may be entitled to a refund
- If a notice of cancellation is made through attendance at the 1st class session or the 7th day after enrollment, **whichever is later**:
 - A student is entitled to a **refund of all charges**, less the amount of a reasonable deposit or application fee not to exceed \$250.
 - *Note: A refund of all charges would include any used or opened equipment, textbooks, or materials.*
- **After the cancellation period**, students shall have the right to withdraw
 - The refund policy for students who have completed 60% or less of the period of attendance shall be a pro rata refund.

CEC § 94919, § 94920, 5 CCR § 71750

4. Refunds

What is the Period of Attendance?

- A pro rata refund is issued if a student completes 60% or less of the period of attendance
- “Period of attendance” means:
 - A semester, quarter, or trimester for educational programs measured in credit hours, or the entire educational program if measured in clock hours



CEC § 94854, § 94920, 5 CCR §71750

4. Refunds

Cancellation Period Activity

Kelly signs an enrollment agreement to enroll in a program on January 5, 2024. Classes start on January 9, 2024.

She attends the first two classes and decides she is no longer interested in the program. Kelly submits her notice of cancellation on January 11, 2024.

Is Kelly due a refund? If so, what kind of refund?

Kelly is entitled to a full refund, less any non-refundable charges for a reasonable deposit or application fee since she cancelled her enrollment agreement within seven (7) days after enrollment.



4. Refunds

- Pro-Rata Refund Calculation Steps:
 1. Determine **daily/hourly charge** for the program
 - Total Institutional Charge for whole program ÷ number of days or hours in the program
 2. Identify number of **days/hours attended**, or was scheduled to attend, prior to withdrawal
 3. Multiply daily/hourly charge by days/hours attended to determine **amount owed to the institution**
 4. Identify total **amount student paid**

CEC § 94919, § 94920, 5 CCR § 71750

4. Refunds

- Pro-Rata Refund Calculation Steps (*continued*):
 - 5. Identify **Non-refundable fees**
 - Non-refundable fees must be clearly identified in the enrollment agreement that the student signed
 - 6. Calculate the **amount that the student has paid subject to refund** from what the student paid
 - Subtract the non-refundable fees from the amount student paid
 - 7. Calculate **refund due** to the student
 - $\text{Refundable Amount} - \text{Amount owed to the Institution} = \text{Refund Due}$

CEC § 94919, § 94920, 5 CCR § 71750



Refund Example

Student pays total charges
for tuition, registration, STRF
fee, and books.

The total amount is
\$5,500.00



Refund Example

Student withdraws after completing 25 of 50 total days, or 50% of the period of attendance.




$$\frac{\$5,500}{50 \text{ days}} = \$110/\text{day}$$



Refund Example

Divide the total charges by
the number of days in the
program.

25 days attended

x

\$110/day

=

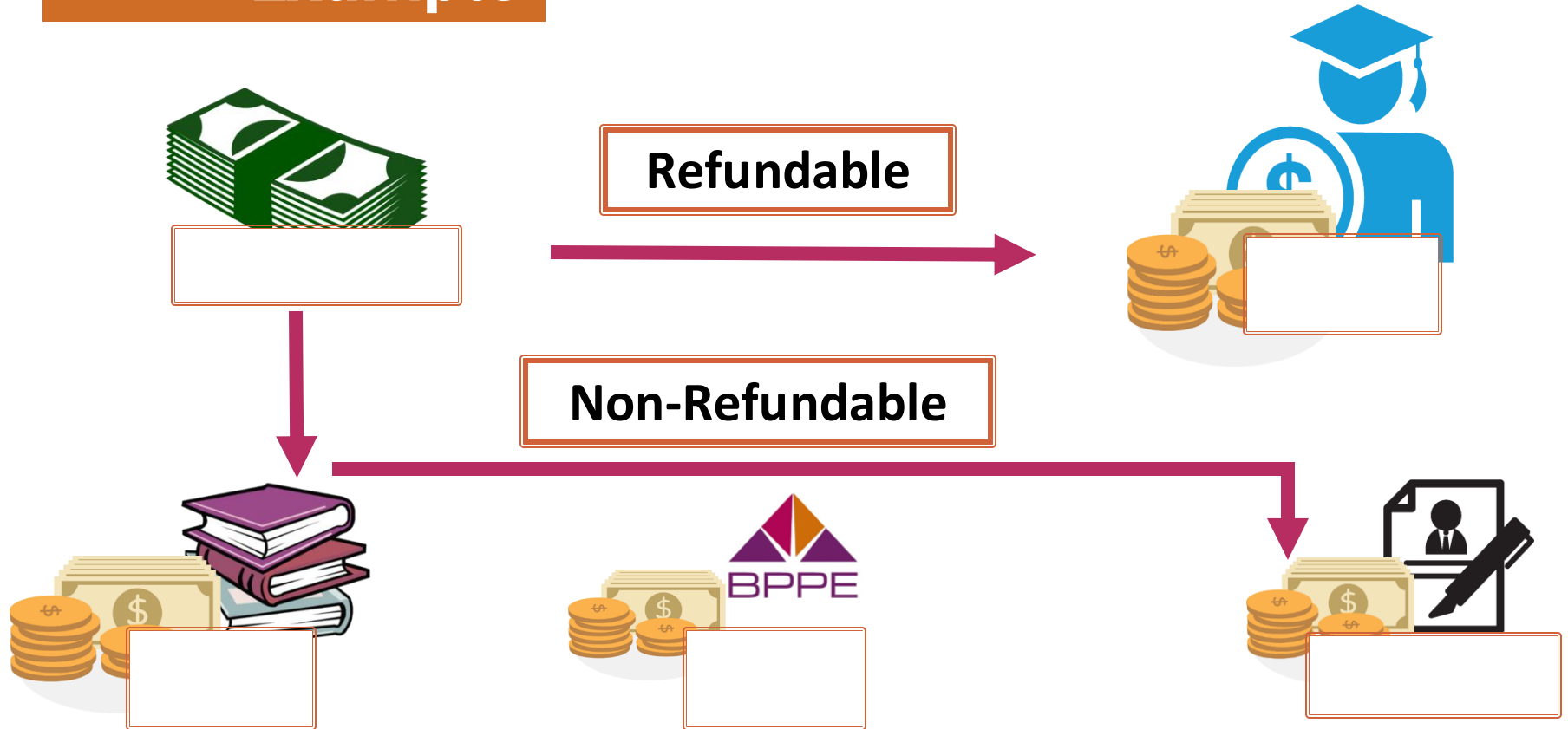
**\$2,750 owed
to institution**



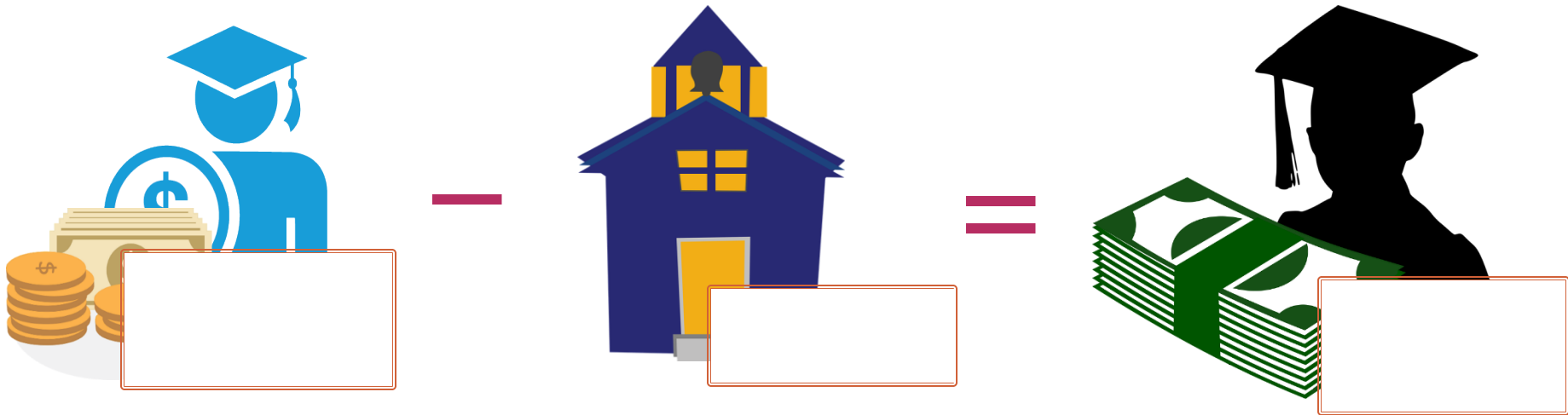
**Refund
Example**



Refund Example



Refund Example



4. Refunds

Refer to worksheet titled
“Pro-Rata Refund Practice”
for a practice activity



Pro-Rata Refund Practice

Scenario: The school charges the student \$5,000 for the program (Total Charges). This includes:

\$4,500.00	Tuition (refundable)
100.00	Registration fee (<u>non</u> -refundable)
12.50	STRF fee (<u>non</u> -refundable)
+ 387.50	Books (<u>non</u> -refundable)
\$5,000.00	Total Charges

The student pays \$2,000 up front (Total Student Paid). The student withdraws after completing 20 out of 100 days in the period of attendance.

1. What percentage of the period of attendance did the student attend?

$$\frac{\text{(Days Student Attended)}}{\text{(Total \# of Days)}} \div \frac{\text{(Total \# of Days)}}{\text{(Total \# of Days)}} = \frac{\text{(Percentage Attended)}}{\text{(Percentage Attended)}}$$

2. Is the student eligible for a pro-rata refund? ☐ Yes ☒ No

3. Divide the Total Charges by the total number of days in the period of attendance.

$$\frac{\text{(Total Charges)}}{\text{(Total \# of days)}} \div \frac{\text{(Total \# of days)}}{\text{(Total \# of days)}} = \frac{\text{(Charge per day)}}{\text{(Charge per day)}}$$

4. Multiply the number of days the student attended by the charge per day to determine the amount the student owes to the school.

$$\frac{\text{(\# Of Days Attended)}}{\text{(\# Of Days Attended)}} \times \frac{\text{(Charge Per Day)}}{\text{(Charge Per Day)}} = \frac{\text{(Amount Owed to School)}}{\text{(Amount Owed to School)}}$$

5. Determine what is refundable of the amount the student paid.

\$	Total Student Paid
-	Registration Fee (Non-Refundable)
-	STRF fee (Non-Refundable)
-	Books (Non-Refundable)
\$	Refundable Amount

6. Calculate the amount refunded to the student.

\$	Refundable Amount
-	Amount Owed to the School
\$	Refund to the Student

Pro-Rata Refund Practice

Pro-Rata Refund Practice

Scenario: The school charges the student **\$5,000** for the program (Total Charges). This includes:

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+ 387.50	Books (<u>non</u> -refundable)
\$5,000.00	Total Charges

The student pays **\$2,000** up front (Total Student Paid). The student withdraws after completing **20** out of **100** days in the period of attendance.

1. What percentage of the period of attendance did the student attend?

$$\frac{20}{\text{(Days Student Attended)}} \div \frac{100}{\text{(Total \# of Days)}} = \frac{20\%}{\text{(Percentage Attended)}}$$

2. Is the student eligible for a pro-rata refund? ☐ Yes ☒ No

3. Divide the Total Charges by the total number of days in the period of attendance.

$$\frac{\$5,000.00}{\text{(Total Charges)}} \div \frac{100}{\text{(Total \# of days)}} = \frac{\$50.00}{\text{(Charge per day)}}$$

Pro-Rata Refund Practice

4. Multiply the number of days the student attended by the charge per day to determine the amount the student owes to the school.

$$\frac{20}{(\# \text{ Of Days Attended})} \times \frac{\$50.00}{(\text{Charge Per Day})} = \frac{\$1,000.00}{(\text{Amount Owed to School})}$$

5. Determine what is refundable of the amount the student paid.

\$ 2,000.00	Total Student Paid
<u>100.00</u>	Registration Fee (Non-Refundable)
<u>12.50</u>	STRF fee (Non-Refundable)
- 387.50	Books (Non-Refundable)
<u>\$ 1,500.00</u>	Refundable Amount

6. Calculate the amount refunded to the student.

\$ 1,500.00	Refundable Amount
- 1,000.00	Amount Owed to the School
\$ 500.00	Refund to the Student

4. Refunds

Refunds for Institutions Participating in Title IV Funding

- An institution that participates in the federal student financial aid programs must comply with applicable regulations of the federal student financial aid programs under Title IV of the federal Higher Education Act of 1965.
- The institution shall also provide a pro rata refund of nonfederal student financial aid program moneys paid for institutional charges to students who have completed 60 percent or less of the period of attendance.



Minimum Operating Standard

**Director, Administrator,
and Faculty must be
Qualified**

5. Staff Qualifications

- **Institution Director**
 - The Institution Director manages the daily operations of the institution and oversees all administrators and instructors.
- **Chief Academic Officer**
 - The Chief Academic Officer (CAO) is primarily responsible for overseeing the academic affairs of the institution.
 - They must have a degree or equivalent experience that meets or exceeds the qualifications required for the institution's faculty.

5 CCR § 70000 (p), § 70000 (c), § 71730

5. Staff Qualifications

- Faculty
 - Faculty providing instruction in a **program leading to a degree** must have:
 - Degree equivalent to the level of instruction taught
 - Degree from an accredited, BPPE or other state approved institution; or recognized credential in the field of study
 - Degrees obtained outside the U.S. or Canada must be evaluated by a member of the National Association of Credential Evaluating Services
 - Diverse Educational background
 - Faculty providing instruction in a **program not leading to a degree** must have:
 - Minimum of 3 years of experience, education, and training
 - Knowledge of current practices of subject area
 - Continuing education courses in their field of instruction, classroom management, teaching, etc.

Minimum Operating Standard

**Institution Must be
Financially Sound**

6. Financial Stability

The institution shall document that it has at all times sufficient assets and financial resources to do all of the following:

1. Able to provide programs it offers
2. Ensure that students have a reasonable opportunity to complete the program
3. Maintain minimum standards
4. Pay timely refunds
5. Pay all operating expenses due within 30 days
6. For non-Title IV institutions, maintain a ratio of current assets to current liabilities of 1.25 to 1.00 or greater at the end of the fiscal year.

6. Financial Stability

- An institution that participates in Title IV funding must meet composite score requirements of the U.S. Department of Education
 - A score **greater than or equal to 1.5** is considered financially responsible
 - A score **between 1.0 and 1.5** is considered financially responsible but requires additional oversight.
 - A score of less than 1.0 is considered **NOT financially responsible**
- These guidelines are derived from the United States Department of Education's website:
 - <https://studentaid.gov/data-center/school/composite-scores>

5 CCR § 71745 (a)(6), § 74115 (b)

Minimum Operating Standard

**Students Must be Given a
Degree/Diploma Upon
Completion of the Program**

7. Degrees and Diplomas

- “Diploma” is a recognized credential, other than a degree, that shows completion of a postsecondary program below the associate’s level.
 - The bureau considers a “diploma” and a “certificate” to be the same.

Accreditation Requirement

- An institution offering a degree program must meet one of these requirements:
 - Be accredited by an agency recognized by the U.S. Department of Education.
 - An accreditation plan, approved by the Bureau, to become fully accredited within five years
- For questions about accreditation, please contact the Bureau’s Licensing or Quality of Education Units.

An institution with Bureau Approval By Means of Accreditation (ABMA) must follow the accrediting agency’s rules. However, both ABMA and non accredited institutions must meet the Bureau’s minimum compliance requirements.

CEC § 94832, § 94885.5; § 94890

Minimum Operating Standard

**Records and Transcripts
Must be Maintained and
Available to Students**

8. Records and Transcripts

A student's file must be maintained for each student who enrolls, whether or not the student completes the program.

- The student's file must contain:
 1. The student's qualifications for admission
 2. Personal information
 3. Copies of all signed documents
 4. Records of enrollment dates, withdrawals, leave of absence, and graduation
 5. A complete transcript
 6. For independent study courses, course outlines or learning contracts



CEC § 94900; 5 CCR § 71920

8. Records and Transcripts (cont.)

7. Dissertation, thesis, and other student projects (for graduate students)
8. Documents related to student financial aid
9. Records of total money received by the student and when it was received
10. Records of refund amounts
11. Copies of official warnings about student progress
12. Complaints made by the student

CEC § 94900; 5 CCR § 71920

8. Records and Transcripts (cont.)

Maintenance of Records

- Records must be maintained for **5 years**
- Student Transcripts must be maintained **permanently**
- Transcripts must contain:
 - Degree or certificate granted
 - Credit awarded for prior experiential learning
 - Credit for courses earned at other institutions
 - Credit based on examination of academic ability or educational achievement
 - Institution's information (name, address, website, and phone number)



CEC § 94900, § 94900.5; 5 CCR § 71920, § 71930

Minimum Operating Standard

**Institution Must Comply
With All Other Applicable
Laws**

How to subscribe to BPPE Alerts

1. Go to https://www.bppe.ca.gov/forms_pubs/subscriptions.shtml
2. Select **Subscribe for Alerts on the following publication(s)...**
and/or **Subscribe for Alerts (courtesy reminders for Institutions) for Annual Fees**
3. Fill out the following details:

Subscription Form

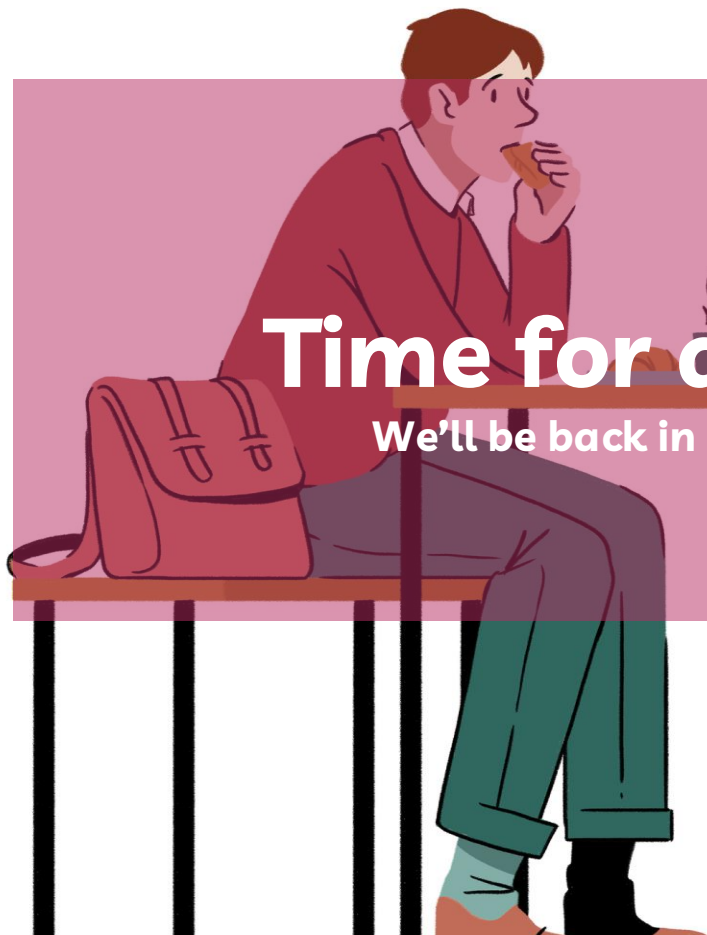
Email address*

 Enter email

Action*

☒ Subscribe ☐ Unsubscribe

Submit



Time for a Break!

We'll be back in 15 minutes.

Preparing for a Compliance Inspection



A blurred background image showing two people in business attire shaking hands. One person is wearing a dark suit, and the other is wearing a light blue shirt. The background is out of focus, showing what appears to be an office or conference room setting with some greenery on the left.

Enforcement Authority

“The Bureau shall determine an institution’s compliance with the requirements of this chapter. The bureau shall have the power to require reports that institutions shall file with the bureau in addition to the annual report, to send staff to an institution’s sites, and to require documents and responses from an institution to monitor compliance.”

CEC § 94932

Compliance Inspections

- What is the difference between inspections and investigations?
 - **Inspection** – A compliance analyst from the Bureau's Compliance Unit will visit the institution to verify general compliance.
 - Inspections are conducted routinely
 - **Investigation** – An investigator from the Bureau's Complaint Investigations Unit will visit the institution to investigate a specific issue(s)
 - Investigations typically are the result of a complaint

CEC § 94941; § 94932

The background of the slide is a photograph of a library or study area. In the foreground, a stack of three books is visible on a desk. The top book has a light-colored cover, the middle one has a red cover, and the bottom one has a dark cover. To the left of the books, a laptop is open, with its screen tilted back. The background is filled with bookshelves containing many books, creating a warm, bokeh effect with soft light spots.

Announced and Unannounced Inspections

“As part of its compliance program, the Bureau shall perform announced and unannounced inspections of institutions at least every five years.”

CEC § 94932

Announced and Unannounced

- **Announced:** An institution has the option to provide requested documentation for review, prior to the day of inspection which can help expedite the day of the inspection.
- **Unannounced:** A compliance analyst will arrive at an institution during the institution's scheduled business hours to complete an inspection



CEC § 94932.5; 5 CCR § 75200

Inspection Prioritization

*The bureau shall perform at least one announced and one unannounced inspection of each institution **every five years***

- The Bureau determines the priority and number of compliance inspections based, in part, on a variety of factors.
- Additional factors can be found in CEC § 94941(c) and 5 CCR § 75200



CEC § 94941 (c); 5 CCR § 75200

An illustration of a woman with dark hair in a ponytail, wearing a black business suit with a white collar and black heels. She is holding a large, stylized megaphone. The megaphone is white with an orange rim and a large orange rectangular area in the center. Inside this orange area, the words "Announced" and "Inspections" are written in white, bold, sans-serif font, stacked vertically. The background is a solid teal color.

Announced Inspections

Announced Inspection

What to expect in an Announced Inspection:

- Bureau will contact the institution's **contact person** to notify the institution of an upcoming inspection
- Bureau requests documentation from the institution
- Compliance analyst identifies possible violations in submitted documents



CEC § 94932.5; 5 CCR § 75200

Notice to Comply Draft



BUSINESS, CONSUMER SERVICES AND VOUCHING AGENCY • CIVILIAN NONPROFIT, OCEANVIEW
DEPARTMENT OF CONSUMER AFFAIRS • BUREAU FOR PRIVATE POSTSECONDARY EDUCATION
1747 N. Market Blvd., Suite 225, Sacramento, CA 95834
P (916) 574-8900 | Toll-Free (888) 370-7589 | www.bppe.ca.gov



NOTICE TO COMPLY CU-12345678-062023

Institution Name:	Example University	Institution Telephone:	(555) 555-5555
Institution Code:	12345678	Administrator Name:	John Doe
Street Address:	123 Main St., Townsville, CA 90112	Inspection Date:	6/15/2023

The Bureau for Private Postsecondary Education (Bureau) issues this Notice to Comply pursuant to California Education Code (CEC) section 94935 and Title 5 of the California Code of Regulations (5 CCR) section 75010.

California Private Postsecondary Education Act: https://www.bppe.ca.gov/lawsregs/pppe_act.pdf
Title 5 of the California Code of Regulations: <https://www.bppe.ca.gov/lawsregs/regs.pdf>

Violation	Code Section Violated	Description of the violation and required correction.
1	CEC §94897(l)	Violation Description: On the school's website, the school states that it is approved by the Bureau but does not state clearly that approval to operate means compliance with state standards. Correction: Add to the website the required disclosure statement, as required by CEC §94897(l). Provide a screenshot or link to the school website that shows compliance with §94897(l).
2	5, CCR §71800(e)	Violation Description: The school enrollment agreement does not include an itemization of all institutional charges and fees. Correction: Add to the enrollment agreement an itemization of all institutional charges and fees. Provide a copy of the enrollment agreement that shows compliance with 5, CCR §71800(e).

Pursuant to 5 CCR section 75010(d), the Institution may do either of the following:

- (1) Within 30 days from the date of the inspection, sign and return the notice to comply, declaring under penalty of perjury that the violation was corrected and describing how compliance was achieved; or
- (2) Within 30 days from the date of the inspection, file with the Bureau a written notice of disagreement, specifying the minor violations described in the notice to comply with which the person approved to operate the institution disagrees, and appealing it by requesting an informal office conference. If a written notice of disagreement is not timely filed with the Bureau, the right to appeal is deemed to have been waived.

Pursuant to CEC section 94935(h), failure to comply with the notice to comply will result in the Bureau taking appropriate administrative enforcement action.

The Notice to Comply was given to the Institution's owner, person in control, chief academic officer, chief executive officer, chief operating officer, institution director, or any person delegated by any of the aforementioned persons to facilitate the inspection or accept such notice as set forth below.

Notice To Comply Given To Name & Title:	John Doe, Owner
Bureau Compliance Analyst Name:	Joe Compliance Analyst
Bureau Compliance Analyst Signature:	[Compliance Analyst Signature]

- (1) Within 30 days from the date of the inspection, sign and return the notice to comply, declaring under penalty of perjury that the violation was corrected and describing how compliance was achieved; or
- (2) Within 30 days from the date of the inspection, file with the Bureau a written notice of disagreement, specifying the minor violations described in the notice to comply with which the person approved to operate the institution disagrees, and appealing it by requesting an informal office conference. If a written notice of disagreement is not timely filed with the Bureau, the right to appeal is deemed to have been waived.

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Notice To Comply Given To Name & Title:	John Doe, Owner
Bureau Compliance Analyst Name:	Joe Compliance Analyst
Bureau Compliance Analyst Signature:	[Compliance Analyst Signature]

Announced Inspection

- Bureau will request the following documents prior to the announced inspection:
 - **Report of Institution Contact Form** to update institution, contact person, and custodian of records information, if necessary
 - **Student Tuition Recovery Fund** supporting data
 - **Catalog** and Catalog Checklist
 - **Enrollment Agreement** and Enrollment Agreement Checklist
 - **School Performance Fact Sheet** supporting data

Announced Inspection

A compliance analyst will also review:

- Institution's complaint, inspection, and discipline history
- Website
- Status with accreditor, if applicable



Student Tuition Recovery Fund (STRF)

A compliance analyst will request the supporting data for the STRF Assessment Reporting Form

- The Bureau currently requires that institutions collect \$0.00 for every \$1,000.00
- For questions about STRF, please contact BPPE.STRFAssmntFee@dca.ca.gov

5 CCR § 76020; § 76120; § 76140 (b)

Student Tuition Recovery Fund (STRF)

Student Tuition Recovery Fund Supporting Data

- STRF supporting data must include:

☐ Student identification number ☐ First and last names ☐ Email address ☐ Local or mailing address ☐ Address at the time of enrollment ☐ Home address ☐ Date enrollment agreement signed ☐ Courses and course costs	☐ Amount of STRF assessment collected ☐ Quarter in which the STRF assessment was remitted to the Bureau ☐ Third-party payer identifying information, ☐ Total institutional charges charged ☐ Total institutional charges paid
--	--

5 CCR § 76140 (a); § 76140 (b)

STRF Example

	A	B	C	D	E	F	G	H
	Student Identification Number	First Name	Last Name	Email Address	Local or Mailing Address	Address at the Time of Enrollment	Home Address	Date enrollment agreement signed
1								
2	10001	Jane	Doe	jane.doe@fakeemail.com	101 Main St, Cityville, CA 90112	Same	Same	6/30/2023
3	10002	Jack	Doe	jack.doe@fakeemail.com	102 Main St, Cityville, CA 90112	345 General Blvd, Townsville, CA 90113	678 Front Ave, Metroville, CA 90114	7/1/2023
4	10003	Jill	Doe	jill.doe@fakeemail.com	103 Main St, Cityville, CA 90112	Same	Same	7/2/2023
5	10004	Jennifer	Doe	jennifer.doe@fakeemail.com	104 Main St, Cityville, CA 90112	Same	Same	7/3/2023
6	10005	Jonathan	Doe	jonathan.doe@fakeemail.com	105 Main St, Cityville, CA 90112	Same	Same	7/4/2023
7	10006	Jerry	Doe	jerry.doe@fakeemail.com	106 Main St, Cityville, CA 90112	Same	Same	7/5/2023
8	10007	Joseph	Doe	joseph.doe@fakeemail.com	107 Main St, Cityville, CA 90112	Same	Same	7/6/2023
9	10008	Jayden	Doe	jayden.doe@fakeemail.com	108 Main St, Cityville, CA 90112	Same	Same	7/7/2023
10	10009	Jessica	Doe	jessica.doe@fakeemail.com	109 Main St, Cityville, CA 90112	Same	Same	7/8/2023

I	J	K	L	M	N	O
Course	Course Costs	Amount of STRF assessment collected	Quarter in which the STRF assessment was remitted to the Bureau	Third-party identifying information	Total Institutional Charges Charged	Total Institutional Charges Paid
Pharmacy Tech	\$12,000.00	\$37.50	Q2 2023	WIOA	\$14,500.00	\$14,500.00
Medical Billing	\$6,000.00	\$17.50	Q3 2023	VA	\$6,700.00	\$6,700.00
Medical Assistant	\$8,000.00	\$22.50	Q3 2023	WIOA	\$9,100.00	\$9,100.00
Pharmacy Tech	\$12,000.00	\$37.50	Q3 2023	-	\$14,500.00	\$3,000.00
Medical Billing	\$6,000.00	\$17.50	Q3 2023	VA	\$6,700.00	\$6,700.00
Medical Billing	\$6,000.00	\$17.50	Q3 2023	-	\$6,700.00	\$300.00
Medical Assistant	\$8,000.00	\$22.50	Q3 2023	-	\$9,100.00	\$4,000.00
Medical Billing	\$6,000.00	\$17.50	Q3 2023	DOR	\$6,700.00	\$6,700.00
Pharmacy Tech	\$12,000.00	\$37.50	Q3 2023	WorkSource	\$14,500.00	\$14,500.00

Catalog and Enrollment Agreement

- A compliance analyst will review the catalog and enrollment agreement to identify any violations.

Tip: You can use the Catalog and Enrollment Agreement checklist before the inspection to identify and resolve any violations!



CEC § 94909; § 94911; 5 CCR § 71800; § 71810

School Performance Fact Sheet (SPFS)

School Performance Fact Sheets Supporting Data

- SPFS supporting data must include:

☐ List of job classifications determined to be considered gainful employment for the educational program	☐ Scheduled completion date
☐ Student name	☐ Actual completion date
☐ Address	☐ Graduate's position
☐ Phone number	☐ Graduate's place of employment
☐ Email address	☐ Date employment began
☐ Program name	☐ Date employment ended (if applicable)
☐ Program start date	☐ Actual salary
	☐ Hours per week
	☐ Date employment was verified

5 CCR § 74112 (e)(2), (m)

School Performance Fact Sheet (SPFS)

School Performance Fact Sheets Supporting Data

- SPFS supporting data must include:

- ☐ Employer(s) Name
- ☐ Employer Address
- ☐ Employer Phone Number
- ☐ Employer Contact Person
- ☐ Employer Contact Phone Number
- ☐ Employer Contact Email Address
- ☐ All written communication verifying employment or salary
- ☐ All documentation necessary to demonstrate self-employment
- ☐ Description of all attempts to contact each student or employer, dates, notes, letters, etc.

School Performance Fact Sheet (SPFS)

School Performance Fact Sheets Supporting Data

- SPFS supporting data must include:
 - ☐ Documentation for “Students unavailable for graduation” and “Graduates unavailable for employment” including:
 - ☐ Student name
 - ☐ Type of unavailability
 - ☐ Dates of unavailability
 - ☐ Documentation of unavailability

School Performance Fact Sheet (SPFS)

School Performance Fact Sheets Supporting Data

- SPFS supporting data must include:

- ☐ Documentation used to provide data regarding license examination and examination results
- ☐ Institution personnel who was primarily responsible for collecting the data, including details about:
 - ☐ Name
 - ☐ Email address
 - ☐ Phone number
 - ☐ Position or title
 - ☐ Date information was gathered
 - ☐ Copies of notes, letters, and/or email where information was requested and gathered

Website Review

- A compliance analyst will review the institution's website to verify that the following are clearly and conspicuously posted on the homepage:
 - Institution catalog
 - School Performance Fact Sheet for each program offered by the institution
 - Brochures (if applicable)
 - Link to Bureau's website
 - Most current Annual Report



CEC § 94913; 5 CCR § 74117

Notice to Students Example



Bureau for Private Postsecondary Education
P.O. Box 980818, West Sacramento, CA 95798-0818
(888) 370-7589 / www.bppe.ca.gov



PRE-INSPECTION NOTICE TO STUDENTS

This institution is subject to announced compliance inspections by the Bureau for Private Postsecondary Education. An announced compliance inspection has been scheduled for this institution on:

October 10, 2023 at 9:00 a.m.

Information regarding the results of the announced inspection can be found at the Bureau's website at www.bppe.ca.gov/enforcement/inspection_results, after the inspection. Students who have questions or comments can contact the Bureau directly by telephone at 888-370-7589 or via the website at www.bppe.ca.gov.

(This notice shall remain posted until the announced inspection is completed.)

(Title 5 Division 7.5 California Code of Regulations Section 75210)

5 CCR § 75210 (a)

Types of Compliance Inspection - Review

1. What is the difference between an inspection and an investigation?
2. What are some reasons an institution is selected for an inspection?
3. What institution documents does the compliance analyst review before the inspection?



Day of the Inspection: Arrival



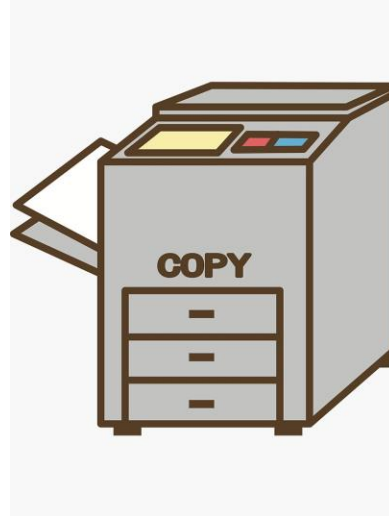
Introductions

- The compliance analyst reviews the following documents with the institution representative:
 - **Announcement Letter**
 - **Arrival Letter**
 - **Report of Institution Contact Information**
 - **Inspection Checklist which includes a Student and Faculty Reference guide**



Set Up

- The compliance analyst will need the following:
 - A private room
 - Owner or individual authorized by the owner
 - Copy Machine

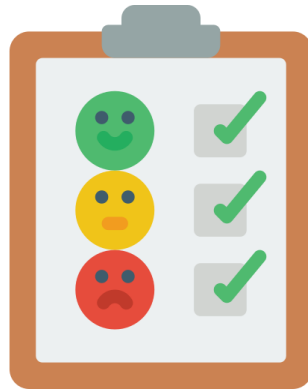


Site Tour

- The compliance analyst will verify the following:
 - Students have access to working equipment
 - The lab and classroom spaces are suitable for the number of students in the program
 - Equipment and materials are up-to-date with industry standards
 - The library and other learning resources support the programs offered

Student Survey

- A survey will be provided to students
- This survey is **anonymous** and **confidential**



Day of the Inspection: Document Review



Compliance Checklist

- The following items will be reviewed by the Compliance Analyst:
 - Chief Academic Officer (CAO) file
 - Instructor files
 - Current student files
 - Graduated student files
 - Withdrawn/Cancelled student files
 - Advertising materials
 - Self-Monitoring Procedures

Advertising Review

- The compliance analyst will request copies of the institution's current advertising.
- Advertising documents will be verified for accuracy
- Institutions are required to retain copies of advertising for a minimum of five (5) years.



Self-Monitoring Procedures

- The compliance analyst will review the institution's self-monitoring procedures
- The institution must create and follow procedures to ensure it complies with state laws and regulations.



Review #2

1. Who can represent the institution during an inspection?
 2. Which documents will the compliance analyst review during the inspection?
- 

Day of the Inspection: Record Review



Faculty Files

- The compliance analyst will:
 - select at least **three (3) faculty files** at random to review
 - will also review the file for the **Chief Academic Officer (CAO)**
 - will verify that faculty and the CAO meet minimum qualification requirements

CEC § 94885 (a)(5); 5 CCR § 71720



File Review

The institution will provide access to student files, including:

- | | |
|--|--|
| <ul style="list-style-type: none">☐ Documentation of qualifications for admission☐ Bachelor or Master's Degree (graduate programs only)☐ Enrollment agreement, signed☐ Records showing date of enrollment and, if applicable, leave of absence☐ Student's name, address, email address, and phone number☐ STRF collected from first payment☐ SPFS, initialed, signed, and dated | <ul style="list-style-type: none">☐ Records or transcript from other institutions for admission or transfer of credits☐ All documents signed by student☐ Advisory notices or warnings☐ Documents showing money received from or on behalf of student☐ Transcript (graduated and withdrawn/dropped students only)☐ Additional admission documents |
|--|--|

5 CCR § 71770; § 71920

Withdrawn/Cancelled Students

- Files for withdrawn or cancelled students must include a detailed refund calculation and proof of refund.
- The institution must maintain a cancellation and withdrawal log, updated monthly.



5 CCR § 71920; § 71750 (f)

Refunds

- The Compliance Analyst will verify that:
 - The institution's refund policy and records meet the minimum requirements
 - Refunds were completed correctly, according to the minimum policy requirement



CEC § 94919, § 94920; CCR § 71920, § 71750

Day of the Inspection: Wrap Up



Post-Inspection Notice to Students



Bureau for Private Postsecondary Education
P.O. Box 980818, West Sacramento, CA 95798-0818
(888) 370-7589 / www.bppe.ca.gov



POST INSPECTION NOTICE TO STUDENTS

This institution is subject to regular compliance inspections by the Bureau for Private Postsecondary Education. Information regarding the dates of inspections conducted and the results of those inspections can be found at the Bureau's website at www.bppe.ca.gov/enforcement/inspection_results.

This institution was last inspected on
November 15, 2023

Students who have questions or comments can contact the Bureau directly by telephone at 888-370-7589 or via the website at www.bppe.ca.gov.

(This notice shall remain posted for at least 90 days from the date listed above)

Possible Inspection Results

- A **Notice to Comply** (NTC) will be issued if minor violations were not corrected by the end of the inspection.
- An **Enforcement Referral** will be issued to the Enforcement Unit if material violations were observed.
- If the compliance analyst **did not observe any violations**, the inspection is complete

CEC § 94935, 5 CCR § 75010

After the Inspection – Notice to Comply

- The **Notice to Comply** (NTC) is posted to the Bureau's website
- The NTC will be provided to one of the following Institution representatives:
 - Owner or Person in Control
 - Chief Academic Officer, Chief Executive Officer, Chief Operating Officer
 - Institution Director
 - Person delegated by the owner or CAO

CEC § 94935, 5 CCR § 75010

After the Inspection – Notice to Comply

- The institution **has 30 calendar days** to respond to the NTC
- A cleared NTC will show as cleared on the Bureau's website
- If the institution **disagrees with any violation on NTC**, the institution can file a Notice of Disagreement (NOD).
- If the institution **doesn't respond or correct all violations on time**, the institution may be subject to enforcement action.

CEC § 94935, 5 CCR § 75010

NTC Declaration Page

NOTICE TO COMPLY
CU-12345678-062023

Institution Name:	Example University	Institution Telephone:	(555) 555-5555
Institution Code:	12345678	Administrator Name:	John Doe
Street Address:	123 Main St., Townsville, CA 90112	Inspection Date:	6/15/2023

I declare under penalty of perjury that each violation identified in this Notice to Comply has been corrected and attached with this declaration is evidence to support the correction of each violation identified.

Signature

Date

Print Name and Title

After the Inspection – Enforcement Referral

Enforcement Referral

- If a potential material violation is identified during the inspection, it will be referred to the Enforcement unit for further review
- Potential material violations may result in any of the following enforcement actions:



Investigation



**Administrative
Citation**



**Attorney General
Referral**



Closed Referral

CEC § 94933, § 94936



Review #3

1. What option does the Institution have if they don't agree with a violation listed on the Notice to Comply?
 2. What happens if the compliance analyst does not identify any outstanding violations by the end of the inspection?
- 



Unannounced Inspections

Unannounced Inspection

What to expect in an Unannounced Inspection:

- The bureau **does not** contact the institution before the inspection
- A compliance analyst will check the institution's website for the catalog and School Performance Fact Sheet(s).
- The analyst will also review documents from the institution's annual report, including the enrollment agreement.

Unannounced Inspection

- Institution staff must be available during business hours to assist with an unannounced inspection.
- The compliance analyst may identify violations in available documents
- Minor violations will be documented on a draft Notice to Comply

5 CCR § 71930 (e)





Other Compliance Areas

Substantive Changes

- The following changes require prior Bureau approval:

Change in educational objectives	Change in ownership	Change in Control	Change in Business Organization Form
Change of Location (10 miles or more)	Change of Name	Significant change in method of instructional delivery	Addition of a separate branch more than 5 miles from main or branch campus

CEC § 94893, § 94894, § 94896

Non-Substantive Changes

- The following changes require Bureau notification only:

Change of location less
than 10 miles

Addition of a program
related to approved
programs offered

Addition of new branch 5
miles or less from main or
branch campus

Addition of a
satellite

Change of mailing address

5 CCR § 71660

All such notifications shall be made, **IN WRITING**,
within 30 days of the change and sent to the Bureau.

Important Reminders

- **Annual Fee** is due each year on the anniversary of the original approval date.
- **Annual Report** and **School Performance Fact Sheets (SPFS)** are due on December 1st each year for the previous year's report.
- **STRF Assessment Reports** are due by the last day of the month following the end of each quarter.
 - 1st quarter: April 30th
 - 2nd quarter: July 31st
 - 3rd quarter: October 31st
 - 4th quarter: January 31st

CEC § 94897; 5 CCR § 74006, § 74110, § 74112, § 76130

Institution Closure

Steps to Closing a Location

- Provide 30-day prior notice to the Bureau
- A list of students who were enrolled at any time during the 120 days prior to closure is required to be submitted to the Bureau
- Provide a plan to notify students of their rights and options
- Complete the ***School Closure Plan Form*** or provide the required closure data
- Institution is responsible for providing refunds to students within 45 days.

CEC § 94926, 94923(b)(2)(B), 94923 (b)(2)(C), 5 CCR § 76240

Institution Closure

Steps to Closing a Location (cont.)

- If the institution has students with unfinished education plans, the institution must provide to the Bureau:

Teach out and/or
Transfer plan

Refund Plan

Notify students
of:
- STRF
- OSAR
- Bureau's
contact info

Proof of
returns and
refunds

CEC § 94926, § 94927, 5 CCR § 76240

Closed Schools Unit:

Email: BPPE.ClosedSchools@dca.ca.gov

Phone Number: (888) 370-7589, press 8



Helpful Tips

Prohibited Business Practices

- Institutions must avoid certain practices that could harm the public, including, but not limited to:
 - Using the term ***“approval”*** without clearly and conspicuously stating that approval to operate means compliance with state standards as set forth in the California Private Postsecondary Education Act of 2009
 - Making a misleading or untrue statement about test scores, grades, attendance record, placement, or financial information
 - Violating Section 1788.93 of Civil Code

Prohibited Business Practices

CA Civil Code § 1788.93

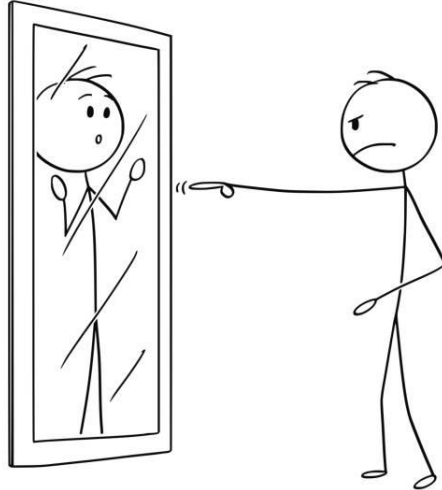
- Notwithstanding any provision of law, a school shall not do any of the following:
 - (a) Refuse to provide a transcript for a current or former student on the grounds that the student owes a debt.
 - (b) Condition the provision of a transcript on the payment of a debt, other than a fee charged to provide the transcript.
 - (c) Charge a higher fee for obtaining a transcript or provide less favorable treatment of a transcript request because a student owes a debt.
 - (d) Use transcript issuance as a tool for debt collection.

CEC § 94897 (s)

Prohibited Business Practices

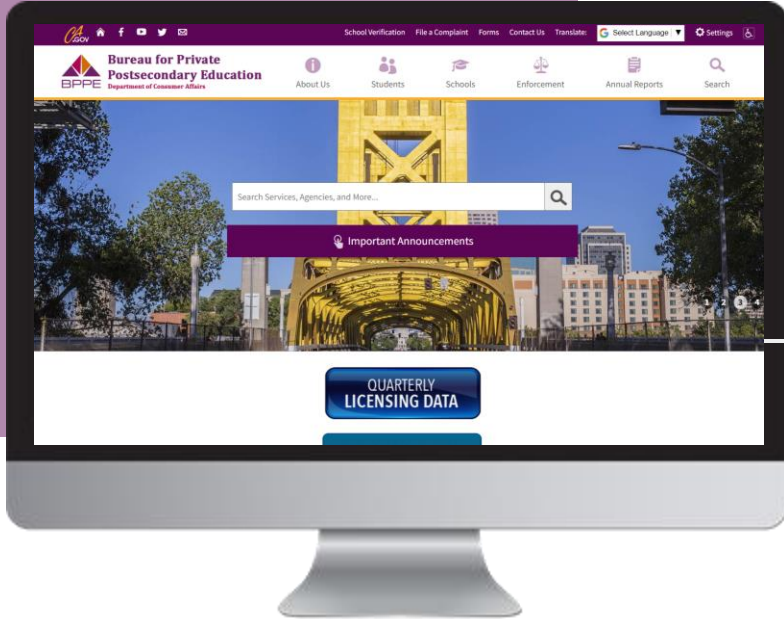
CEC § 94897 (u)

- Failure to maintain policies related to compliance with this chapter or adhere to the institution's stated policies



CEC § 94897 (u)

BPPE Website



Q www.bppe.ca.gov



Resources available on the Bureau's Website:

- Laws and regulations
- Inspection results
- Regulatory updates
- Annual reports
- Catalog and Enrollment Agreement Checklists
- School Performance Fact Sheet Guide

An illustration of a smartphone with a light blue screen and a dark blue back, tilted diagonally. Three speech bubbles are floating around it: a red one on the left, a green one on the right, and a grey one at the bottom. The entire scene is set against a light purple background with a central orange rectangular area.

Contact Information

BPPE Contact

Bureau for Private Postsecondary Education

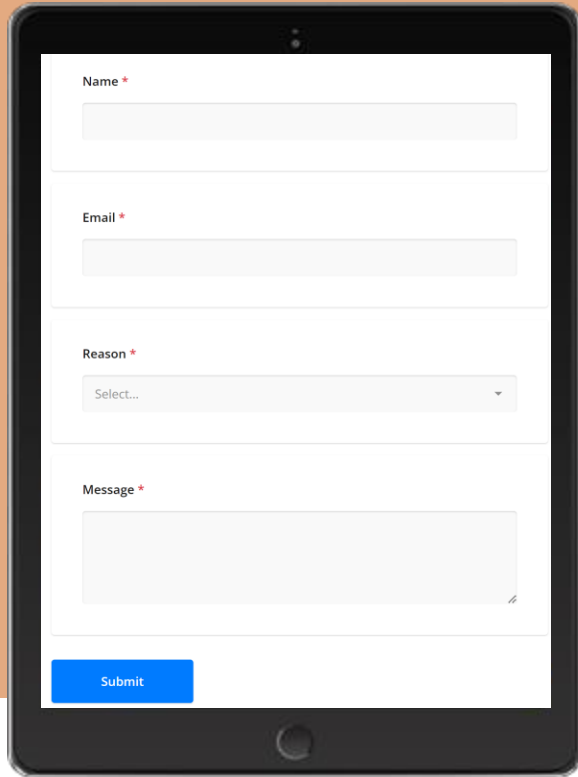
Main (916) 574-8900

Toll Free (888) 370-7589

Fax (916) 263-1897

General Email bppe@dca.ca.gov

Bureau Contact Form



A tablet displaying the mobile version of the Bureau Contact Form. The form includes fields for Name, Email, Reason (a dropdown menu), and Message, each with an asterisk indicating it is required. A blue Submit button is at the bottom.

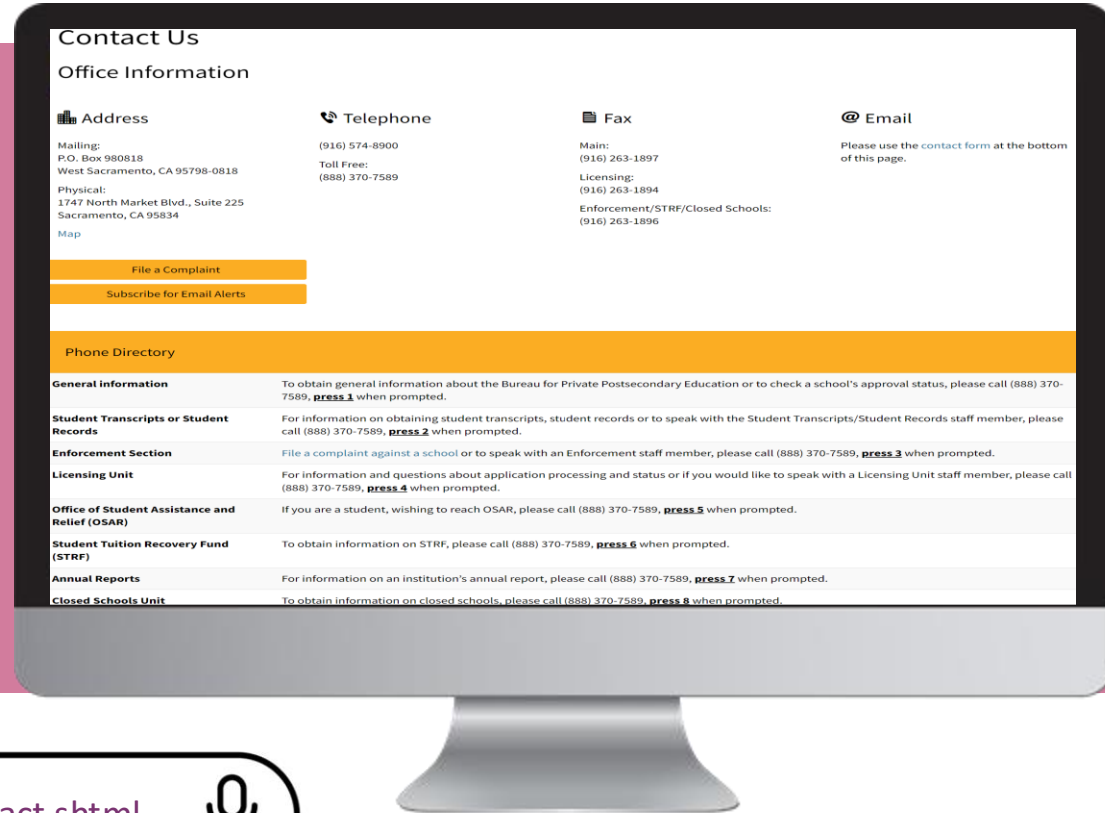
Name *

Email *

Reason *

Message *

Submit



A desktop monitor displaying the desktop version of the Bureau Contact Form. The page is titled "Contact Us" and "Office Information". It features four columns of contact information: Address, Telephone, Fax, and Email. Below these are two orange buttons: "File a Complaint" and "Subscribe for Email Alerts". A yellow "Phone Directory" section follows, containing a table with contact details for various units.

Contact Us

Office Information

Address	Telephone	Fax	Email
Mailing: P.O. Box 980818 West Sacramento, CA 95798-0818 Physical: 1747 North Market Blvd., Suite 225 Sacramento, CA 95834 Map	(916) 574-8900 Toll Free: (888) 370-7589	Main: (916) 263-1897 Licensing: (916) 263-1894 Enforcement/STRF/Closed Schools: (916) 263-1896	Please use the contact form at the bottom of this page.

[File a Complaint](#)

[Subscribe for Email Alerts](#)

Phone Directory

General information	To obtain general information about the Bureau for Private Postsecondary Education or to check a school's approval status, please call (888) 370-7589, press 1 when prompted.
Student Transcripts or Student Records	For information on obtaining student transcripts, student records or to speak with the Student Transcripts/Student Records staff member, please call (888) 370-7589, press 2 when prompted.
Enforcement Section	File a complaint against a school or to speak with an Enforcement staff member, please call (888) 370-7589, press 3 when prompted.
Licensing Unit	For information and questions about application processing and status or if you would like to speak with a Licensing Unit staff member, please call (888) 370-7589, press 4 when prompted.
Office of Student Assistance and Relief (OSAR)	If you are a student, wishing to reach OSAR, please call (888) 370-7589, press 5 when prompted.
Student Tuition Recovery Fund (STRF)	To obtain information on STRF, please call (888) 370-7589, press 6 when prompted.
Annual Reports	For information on an institution's annual report, please call (888) 370-7589, press 7 when prompted.
Closed Schools Unit	To obtain information on closed schools, please call (888) 370-7589, press 8 when prompted.



https://www.bppe.ca.gov/about_us/contact.shtml



BPPE Contact

Compliance Managers

Michele Alleger

(916) 574-7394

michele.alleger@dca.ca.gov

Jill Wimberly

(279) 895-6027

jill.wimberly@dca.ca.gov

THANK YOU!

Any Questions?



We'll stick around for a few more minutes.

Please complete our survey
Your feedback matters!



<https://forms.office.com/g/BmCG3HpMjx>